

The Case will be stayed pending mediation and/or arbitration.

A control date of 1/20/27, 8:30 am, will be scheduled to ascertain the posture of mediation.

Defendant to file Order.

13. 9:00 AM CASE NUMBER: L26-04085
CASE NAME: PORTFOLIO RECOVERY ASSOCIATES, LLC VS. RUBEN ARIASRUIZ
***HEARING ON MOTION IN RE: TO COMPEL ARBITRATION AND STAY PROCEEDINGS**
FILED BY: ARIASRUIZ, RUBEN

***TENTATIVE RULING**

Defendant has filed a Motion to compel arbitration. The Motion is unopposed, but there is no evidence that Defendant provided notice to the Plaintiff.

Disposition

This Motion will be continued to 1/12/27, 9am

Defendant to properly notify and serve Plaintiff.

14. 9:00 AM CASE NUMBER: N26-0972
CASE NAME: MOHAMMED NAAR VS. EMPLOYMENT DEVELOPMENT DEPARTMENT 255-EDD-PFL-DEPARTMENT
***HEARING ON MOTION IN RE: FOR LEAVE TO FILE AMENDED COMPLAINT FROM PETITION TO COMPLAINT PURSUANT TO CCP 473**
FILED BY: NAAR, MOHAMMED

TENTATIVE RULING:

Petitioner filed a Motion to amend a petition to a complaint, under CCP 473.

The Motion is unopposed, but there is no evidence that Petitoiner provided any notice to Respondent.

However, given the court's ultimate ruling, there is no prejudice to the Respondent, and the court will issue a tentative ruling. Should Petitioner wish to contest the tentative ruling, then this court will continue the Motion.

Background

Petitioner filed a Petition, on 6/8/26, to review the decision of the state unemployment insurance appeals board ("the Board"), rendered on 3/17/26, in which the Board affirmed the decision of the administrative law judge to deny Petitioner family leave benefits.

In this Motion, Petitioner seeks to amend the Petition by converting it into a complaint. He cites Section 473 of the CCP, but he does not suggest how this section applies to his matter. His argument for the request seems to be that he wants to ensure that he's seeking the appropriate legal remedy.

Analysis

Section 473 of the CCP permits a court to grant leave to a party to amend a pleading in case of mistake.

But there's no mistake apparent in the Petition.

Section 1094.5 of the CCP is the governing authority for an appeal of an administrative agency's decision. The chapter of this section makes quite clear that a party seeks relief from the superior court by petitioning for a writ of mandate. Petitioner's initial attempt at relief is the correct one.

There is no basis for leave to file a complaint.

Disposition

Petitioner's Motion is denied.

Court to issue Order.

15. 9:00 AM CASE NUMBER: N26-0983
CASE NAME: KENNEDY KOBLIN VS. AFSOON MIRZAI
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: KOBLIN, KENNEDY
***TENTATIVE RULING**

Petitioner has filed a Petition to confirm an arbitration award. But Petitioner has not attached any documents from the arbiter that reflect the award, nor has Petitioner provided any notice to Respondent.

Disposition

This Petition will be continued to 1/12/27 at 9 a.m.

Petitioner to provide proper notice to Respondent.

Courtroom Clerk's Session

16. 1:30 PM CASE NUMBER: MS26-0537
CASE NAME: MOUNT DIABLO REALTY & PROPERTY MANAGEMENT VS. CHAVA YEAL KINNIBURGH
JURY TRIAL